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Respondents' Objection To Complainants' Second Unauthorized Sur-Reply

February 13, 2019

**BY E-MAIL
AND FIRST CLASS MAIL**

Ms. Rachel E. Dickon
Acting Secretary
Federal Maritime Commission
Room 1046
800 North Capitol Street, NW
Washington, DC 20573

**RE: Docket No. 15-11
Igor Ovchinnikov, et al. v. Michael Hitrinov, et al.**

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Respondents' Objection to Complainants' Second Unauthorized Sur-Reply

If you have any questions, please do not hesitate to contact me.

Best regards,


Eric C Jeffrey
Counsel

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With
DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

RESPONDENTS' OBJECTION TO COMPLAINANTS'
SECOND UNAUTHORIZED SUR-REPLY

Complainants continue their never-ending quest to delay this proceeding by filing, without leave (or even a request for leave), a second round of post-briefing “evidence” and argument. Complainants’ filing is both unauthorized and irrelevant.

Complainants’ only excuse for this unauthorized sur-reply is to call it a “status report,” a term not used in the FMC regulations and normally used only in connection with brief, non-argumentative notices of intervening cases, statutes, or other developments. See, e.g., FRAP 28(j). In fact, Complainants’ filing is flatly inconsistent with the Commission’s Rules. 46 C.F.R. 502.230. Most importantly, the Commission has already held that a similar status report,

filed by Complainant's counsel in another proceeding, was an impermissible sur-reply and must be struck. *Baltic Auto Shipping v. Hitrinov*, 34 SRR 944 (FMC 2017).¹

Even if the purported "status report" was permissible, it is wholly irrelevant to the only issue at stake – whether the Complainants had legal status as consignees. Absolutely nothing in Complainants' most recent missive suggests even remotely that they were shown as consignees on any bill of lading or other shipping document, the basis for the Initial Decision.²

Further, Complainants' new arguments are based solely on the deposition testimony of Mr. Kapustin in another matter, pending before a federal district court. Such testimony is inadmissible in this proceeding, because Respondents herein have not been afforded any opportunity to cross-examine Mr. Kapustin and expose his falsehoods. See 46 C.F.R. 502.149.3. And as Complainants own filing shows, Mr. Kapustin has refused to answer questions on cross-examination. See Status Report Appendix A at pp. 151 ("I have the right not to answer your questions"); 152 ("I don't think I will answer any of your questions").

Apart from inadmissibility, Mr. Kapustin's latest change with the wind (i.e., his personal interest), lacks any semblance of credibility. Subsequent to this deposition, Mr. Kapustin was sentenced to prison for his dishonesty, in particular for money laundering in connection with his scheme to defraud hundreds of purported car buyers such as Complainants. See Attachment A.

Further, Counsel for Complainants, who now vouches for Mr. Kapustin, has repeatedly told the Commission that Mr. Kapustin is a "pathological liar," whose statements may not be

¹ Counsel's repeated flouting of the Commission's Rules and holdings further supports the Ethical Exceptions herein.

² There is no reason to address at any length Complainants' incomplete and misleading claims about Mr. Werner, who is not counsel herein. Complainants omit to tell the Commission that, after Mr. Hitrinov explained that the inaccurate statement Mr. Werner made to the court was the result of a miscommunication between Mr. Hitrinov and Mr. Werner, Judge Hillman canceled the traverse hearing and has thus far declined to take any disciplinary action against Mr. Werner.

considered.³ Complainants have also repeatedly drawn the Commission's attention to a statement by federal district court Hillman regarding Mr. Kapustin's lack of credibility:

"...you are engaging not only in a **fraud** against the plaintiffs in this case, *but a fraud against this Court*, and I have warned you repeatedly, and I am not going to warn you anymore...you appear to be compelled to continue to offer **false excuses, false statements**, and 10 misrepresentations to this Court **designed to defraud this Court** just as you have defrauded the plaintiffs in this case. I am at wit's end with you. **In my nine years as a judge, I have never seen someone so willing to lie and cheat and steal than you, and your crimes extend to this Court.**" See, e.g., Complainants' August 15, 2016 Response To The Motion To Intervene By Non-Party Sergey Kapustin [Docket No. 88] at pp. 9-10 (Emphasis in original).

³ Just a few of Counsel's more memorable comments:

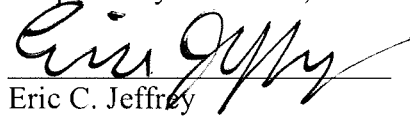
- Mr. Kapustin "is incompetent to take any part in the litigation of this matter." Complainants' August 19, 2016 Response To The Motion To Strike And Seal By Non-Party Sergey Kapustin [Docket No. 94] at p. 2.
- "Kapustin's latest motion is an incoherent rant on a jumble of issues, accusations, and deluded fantasies which abundantly reveal Kapustin's mental instability. Accordingly, and before Kapustin is permitted to in any way intervene in this matter, it is respectfully requested that Kapustin be ordered to undergo a competency hearing." *Id.* at p. 6.
- "Mr. Kapustin's galactic lack of credibility." Complainants' August 9, 2016 Reply To Respondents' Response To Order For Parties To Supplement The Record [Docket No. 85] at p. 4.
- "[A] parallel court of competent jurisdiction has found Mr. Kapustin to be a fraud and a pathological liar. *Id.* See *id.* at 13 (calling Mr. Kapustin a "proven fraud and pathological liar").
- "Complainants state the obvious in noting . . . the specter of the liar, cheat, fraud, and master criminal Kapustin." Complainants' August 31, 2016 Reply To Respondents' Response To Complainants' Motion For Leave To File A Sur –Reply [Docket No. 103] at unnumbered p. 4.
- Certain "material . . . further confirms Kapustin's status as a liar, cheat, fraud, and a master criminal as found by a Court of parallel and competent jurisdiction." Complainants' September 1, 2016 Reply To Respondents' Response To Complainants' Motion To Supplement The Record [Docket No. 105] at p. 2.
- "[W]ild-eyed and reckless accusations [made in] emails from the mentally disturbed and unbalanced Kapustin." *Id.* at p. 3.

Finally, the lawyer who took the deposition – Complainants’ collaborating counsel Ms. Temkin – has herself recognized that Mr. Kapustin is not credible. In a May 15, 2015 email to one of the respondents in this matter Ms. Temkin stated: “At this point no one expects him to tell the truth :)[.]” See Attachment B.

Ignoring all of this, Complainants now make the unsupported suggestion that Mr. Kapustin is finally telling the truth this time. That assertion is rather hard to swallow, given the above. To the extent Complainants are attempting to imply that Mr. Kapustin no longer had a motive to lie, nothing could be further from the truth. At the time of the deposition, Mr. Kapustin had an extremely strong interest in minimizing his forthcoming federal criminal sentence, including pleasing the federal plaintiffs to avoid them filing an impact statement with the sentencing judge.⁴

In sum, Complainants’ so-called “status report” is improper, impermissible, and irrelevant. Should the Commission nevertheless decide to entertain Complainants’ new arguments, Respondents must, as a matter of due process and Commission Rules, be afforded the opportunity to make a substantive response.⁵

Respectfully submitted,



Eric C. Jeffrey
Nixon Peabody LLP
799 9th Street, N.W., Suite 500
Washington, D.C. 20001
(202) 585-8000

Dated: February 13, 2019

⁴ Mr. Kapustin may also have been motivated by animus against Mr. Hitrinov from his role in putting Mr. Kapustin in jail, as evidenced by his threat to murder Mr. Hitrinov. Attachment C.

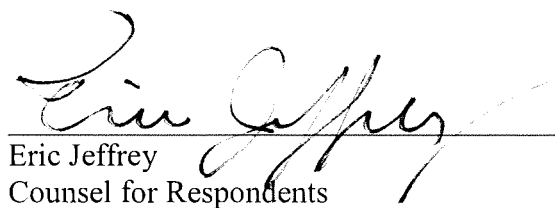
⁵ Under the FMC Rules, the Party that is not taking an Appeal or Exceptions is entitled to the last word on briefing, although in the normal course that comes up only once, not repeatedly.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Objection To Complainants' Second Unauthorized Sur-Reply by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: February 13, 2019


Eric Jeffrey
Counsel for Respondents

Attachment A

UNITED STATES DISTRICT COURT
District of New Jersey

UNITED STATES OF AMERICA

v.

CASE NUMBER 2:18-CR-00135-SDW-1

SERGEY KAPUSTIN

Defendant.

JUDGMENT IN A CRIMINAL CASE
(For Offenses Committed On or After November 1, 1987)

The defendant, SERGEY KAPUSTIN, was represented by CAROL GILLEN, ESQ. (AFPD).

The defendant pleaded guilty to count(s) 1 of the INFORMATION on 3/20/2018. Accordingly, the court has adjudicated that the defendant is guilty of the following offense(s):

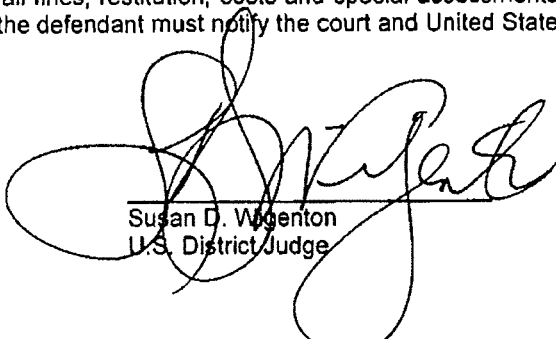
<u>Title & Section</u>	<u>Nature of Offense</u>	<u>Date of Offense</u>	<u>Count Number(s)</u>
18:1957(A) AND 2	MONEY LAUNDERING	2008-2016	1

As pronounced on January 16, 2019, the defendant is sentenced as provided in pages 2 through 7 of this judgment. The sentence is imposed pursuant to the Sentencing Reform Act of 1984.

It is ordered that the defendant must pay to the United States a special assessment of \$100.00 for count(s) 1, which shall be due immediately. Said special assessment shall be made payable to the Clerk, U.S. District Court.

It is further ordered that the defendant must notify the United States Attorney for this district within 30 days of any change of name, residence, or mailing address until all fines, restitution, costs and special assessments imposed by this judgment are fully paid. If ordered to pay restitution, the defendant must notify the court and United States attorney of any material change in economic circumstances.

Signed this 17TH day of January, 2019.


Susan D. Wigenton
U.S. District Judge

Defendant: SERGEY KAPUSTIN
Case Number 2:18-CR-00135-SDW-1

IMPRISONMENT

The defendant is hereby committed to the custody of the United States Bureau of Prisons to be imprisoned for a term of 36 months.

The defendant will surrender for service of sentence at the institution designated by the Bureau of Prisons .

RETURN

I have executed this Judgment as follows:

Defendant delivered on _____ To _____
At _____, with a certified copy of this Judgment.

United States Marshal

By _____
Deputy Marshal

Defendant: SERGEY KAPUSTIN
Case Number: 2:18-CR-00135-SDW-1

SUPERVISED RELEASE

Upon release from imprisonment, you will be on supervised release for a term of 3 years.

Within 72 hours of release from custody of the Bureau of Prisons, you must report in person to the Probation Office in the district to which you are released.

While on supervised release, you must not commit another federal, state, or local crime, must refrain from any unlawful use of a controlled substance and must comply with the mandatory and standard conditions that have been adopted by this court as set forth below.

You must submit to one drug test within 15 days of commencement of supervised release and at least two tests thereafter as determined by the probation officer.

You must cooperate in the collection of DNA as directed by the probation officer.

If this judgment imposes a fine, special assessment, costs, or restitution obligation, it is a condition of supervised release that you pay any such fine, assessments, costs, and restitution that remains unpaid at the commencement of the term of supervised release.

You must comply with the following special conditions:

ALCOHOL TESTING AND TREATMENT

You must refrain from the use of alcohol, and must submit to urinalysis or other forms of testing to ensure compliance. It is further ordered that you must submit to evaluation and treatment, on an outpatient or inpatient basis, as approved by the U.S. Probation Office. You must abide by the rules of any program and must remain in treatment until satisfactorily discharged by the Court. You must alert all medical professionals of any prior substance abuse history, including any prior history of prescription drug abuse. The U.S. Probation Office will supervise your compliance with this condition.

FINANCIAL DISCLOSURE

Upon request, you must provide the U.S. Probation Office with full disclosure of your financial records, including co-mingled income, expenses, assets and liabilities, to include yearly income tax returns. With the exception of the financial accounts reported and noted within the presentence report, you are prohibited from maintaining and/or opening any additional individual and/or joint checking, savings, or other financial accounts, for either personal or business purposes, without the knowledge and approval of the U.S. Probation Office. You must cooperate with the U.S. Probation Officer in the investigation of your financial dealings and must provide truthful monthly statements of your income. You must cooperate in the signing of any authorization to release information forms permitting the U.S. Probation Office access to your financial records.

NEW DEBT RESTRICTIONS

You are prohibited from incurring any new credit charges, opening additional lines of credit, or incurring any new monetary loan, obligation, or debt, by whatever name known, without the approval of the U.S. Probation Office. You must not encumber or liquidate interest in any assets unless it is in direct service of the fine and/or restitution obligation or otherwise has the expressed approval of the Court.

SELF-EMPLOYMENT/BUSINESS DISCLOSURE

You must cooperate with the U.S. Probation Office in the investigation and approval of any position of self-employment, including any independent, entrepreneurial, or freelance employment or business activity. If approved for self-employment, you must provide the U.S. Probation Office with full disclosure of your self-employment and other business records, including, but not limited to, all of the records identified in the Probation Form 48F (Request for Self Employment Records), or as otherwise requested by the U.S. Probation Office.

Defendant SERGEY KAPUSTIN
Case Number: 2:18-CR-00135-SDW-1

OCCUPATIONAL RESTRICTIONS

As a further special condition of supervised release, you must refrain from the purchasing and reselling of motor vehicles.

LIFE SKILLS/EDUCATION

As directed by the U.S. Probation Office, you must participate in and complete any educational, vocational, cognitive or any other enrichment programs offered by the U.S. Probation Office or any outside agency or establishment while under supervision.

MOTOR VEHICLE COMPLIANCE

You must not operate any motor vehicle without a valid driver's license issued by the State of New Jersey, or in the state in which you are supervised. You must comply with all motor vehicle laws and ordinances and must report all motor vehicle infractions (including any court appearances) within 72 hours to the U.S. Probation Office.

SUPPORTING DEPENDENTS

If you are Court-ordered to make child support payments or to make payments to support a person caring for a child, you must make the payments and comply with the other terms of the order.

Defendant: SERGEY KAPUSTIN
Case Number: 2:18-CR-00135-SDW-1

STANDARD CONDITIONS OF SUPERVISION

As part of your supervised release, you must comply with the following standard conditions of supervision. These conditions are imposed because they establish the basic expectations for your behavior while on supervision and identify the minimum tools needed by probation officers to keep informed, report to the court about, and bring about improvements in your conduct and condition.

- 1) You must report to the probation office in the federal judicial district where you are authorized to reside within 72 hours of your release from imprisonment, unless the probation officer instructs you to report to a different probation office or within a different time frame.
- 2) After initially reporting to the probation office, you will receive instructions from the court or the probation officer about how and when you must report to the probation officer, and you must report to the probation officer as instructed.
- 3) You must not knowingly leave the federal judicial district where you are authorized to reside without first getting permission from the court or the probation officer.
- 4) You must answer truthfully the questions asked by your probation officer.
- 5) You must live at a place approved by the probation officer. If you plan to change where you live or anything about your living arrangements (such as the people you live with), you must notify the probation officer at least 10 days before the change. If notifying the probation officer in advance is not possible due to unanticipated circumstances, you must notify the probation officer within 72 hours of becoming aware of a change or expected change.
- 6) You must allow the probation officer to visit you at any time at your home or elsewhere, and you must permit the probation officer to take any items prohibited by the conditions of your supervision that he or she observes in plain view.
- 7) You must work full time (at least 30 hours per week) at a lawful type of employment, unless the probation officer excuses you from doing so. If you do not have fulltime employment you must try to find full-time employment, unless the probation officer excuses you from doing so. If you plan to change where you work or anything about your work (such as your position or your job responsibilities), you must notify the probation officer at least 10 days before the change. If notifying the probation officer at least 10 days in advance is not possible due to unanticipated circumstances, you must notify the probation officer within 72 hours of becoming aware of a change or expected change.
- 8) You must not communicate or interact with someone you know is engaged in criminal activity. If you know someone has been convicted of a felony, you must not knowingly communicate or interact with that person without first getting the permission of the probation officer.
- 9) If you are arrested or questioned by a law enforcement officer, you must notify the probation officer within 72 hours.
- 10) You must not own, possess, or have access to a firearm, ammunition, destructive device, or dangerous weapon (i.e., anything that was designed, or was modified for, the specific purpose of causing bodily injury or death to another person such as nunchakus or tasers).
- 11) You must not act or make any agreement with a law enforcement agency to act as a confidential human source or informant without first getting the permission of the court.
- 12) If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction. The probation officer may contact the person and confirm that you have notified the person about the risk.

Defendant: SERGEY KAPUSTIN
Case Number: 2:18-CR-00135-SDW-1

STANDARD CONDITIONS OF SUPERVISION

13) You must follow the instructions of the probation officer related to the conditions of supervision.

For Official Use Only - - U.S. Probation Office

Upon a finding of a violation of probation or supervised release, I understand that the Court may (1) revoke supervision or (2) extend the term of supervision and/or modify the conditions of supervision.

These conditions have been read to me. I fully understand the conditions, and have been provided a copy of them.

You shall carry out all rules, in addition to the above, as prescribed by the Chief U.S. Probation Officer, or any of his associate Probation Officers.

(Signed) _____
Defendant Date

U.S. Probation Officer/Designated Witness Date

Defendant: SERGEY KAPUSTIN
Case Number: 2:18-CR-00135-SDW-1

RESTITUTION AND FORFEITURE

RESTITUTION

The defendant shall make restitution in the amount of \$1,066,265.00. Payments should be made payable to the **U.S. Treasury** and mailed to Clerk, U.S.D.C., 402 East State Street, Rm 2020, Trenton, New Jersey 08608, for proportionate distribution to the following victims in the following amounts:

SEE ATTACHED VICTIMS LIST.

The restitution is due immediately. It is recommended that you participate in the Bureau of Prisons Inmate Financial Responsibility Program (IFRP). If you participate in the IFRP, the restitution will be paid from those funds at a rate equivalent to \$25 every 3 months. In the event the entire restitution is not paid prior to the commencement of supervision, you must satisfy the amount due in monthly installments of no less than \$200, to commence 30 days after release from confinement.

Unless the court has expressly ordered otherwise, if this judgment imposes imprisonment, payment of criminal monetary penalties is due during imprisonment. All criminal monetary penalties, except those payments made through the Federal Bureau of Prisons' Inmate Financial Responsibility Program, are made to the clerk of the court.

Payments shall be applied in the following order: (1) assessment, (2) restitution principal, (3) restitution interest, (4) fine principal, (5) fine interest, (6) community restitution, (7) JVTa assessment, (8) penalties, and (9) costs, including cost of prosecution and court costs.

2:18-cr-00135 SERGEY KAPUSTIN (1)

V - 1

Restitution of \$1,066,265.00 to:

AA
\$15,920.00

AANK
\$25,274.00

AG
\$17,620.00

AI
\$13,955.00

AI
\$16,420.00

AK
\$12,411.00

AK
\$5,950.00

AK
\$16,640.00

AK
\$8,920.00

AO
\$19,520.00

AP
\$51,390.00

AZ
\$12,920.00

AZ&AK
\$15,940.00

AZ&GK
\$6,920.00

DB
\$8,585.00

DP
\$25,920.00

EB
\$9,920.00

EB
\$13,920.00

EK
\$46,060.00

EK
\$15,920.00

EL
\$64,960.00

ES
\$5,925.00

ET
\$9,920.00

GE
\$14,920.00

2:18-cr-00135 SERGEY KAPUSTIN (1)

V - 2

GZ&SN
\$22,960.00

HD
\$4,520.00

IAIG
\$36,920.00

IC
\$9,920.00

IS
\$9,920.00

IT
\$3,900.00

JD
\$2,920.00

LB
\$12,940.00

MB&DC
\$5,920.00

MC
\$19,940.00

MK
\$10,920.00

MM
\$14,920.00

MP
\$3,920.00

MSSU
\$6,920.00

PGNM
\$10,655.00

PI
\$89,960.00

RM
\$29,615.00

SD
\$14,820.00

SK
\$2,990.00

SS
\$10,940.00

SS
\$18,115.00

SS
\$14,920.00

SS
\$13,080.00

SS
\$14,115.00

2:18-cr-00135 SERGEY KAPUSTIN (1)

V - 3

TG
\$7,920.00

VA
\$15,020.00

VA
\$16,840.00

VA
\$4,500.00

VD
\$12,920.00

VF
\$9,925.00

VK
\$11,090.00

VM
\$22,940.00

VP
\$7,070.00

VY
\$82,700.00

YB
\$13,920.00

Z
\$9,900.00

ZA
\$9,920.00

Attachment B

From: Maria Temkin <maria@brownlegalconsulting.com>
Date: May 12, 2015 at 2:53:39 PM EDT
To: 'Michael Hitrinov' <Michael@hitrins.com>
Cc: 'Anna Brown' <anna@brownlegalconsulting.com>
Subject: RE: 'spisok_mashin_na_sklade_ATS_q_3 copy'

At this point no one expects him to tell the truth :)

Maria Temkin, Esq.
BROWN LEGAL CONSULTING, LLC
1959 The Woods II
Cherry Hill, NJ 08003
(215) 939-4181

-----Original Message-----

From: Michael Hitrinov [mailto:Michael@hitrins.com]
Sent: Tuesday, May 12, 2015 2:36 PM
To: Maria Temkin
Cc: Anna Brown
Subject: Re: 'spisok_mashin_na_sklade_ATS_q_3 copy'

Trsla is already registered in Estonia. The only reason i mentioned it because Kapustin has lied again.
TRT has sold the car because Kapustin owe him \$300 k , the same things as we had to do.
But Kapustin Only mentioned freight and storage.
Perjury.

Sent from my iPhone

On May 12, 2015, at 2:20 PM, Maria Temkin
<maria@brownlegalconsulting.com>

wrote:

Michael, thanks, this information is very useful and we may use it in the future, but we do not need to track this Tesla now.

Maria Temkin, Esq.

BROWN LEGAL CONSULTING, LLC

1959 The Woods II

Cherry Hill, NJ 08003

(215) 939-4181

-----Original Message-----

From: Michael Hitrinov [<mailto:Michael@eulines.com>]

Sent: Sunday, May 10, 2015 2:34 PM

To: Maria Temkin; Anna Brown

Subject: 'spisok_mashin_na_sklade_ATS_q_3 copy'

Here you can see Tesla . But again it has to be checked . In TRT file it is missing.

Let me know if you need any help.

Attachment C

 New York City Police Department OmniForm System - Complaints					
Report Cmd: 060	Jurisdiction: N.Y. POLICE DEPT	Record Status: Final, No Arrests	Complaint #: 2018-060-004015	No Other Legacy Blue Versions	Complaint Revisions: View All Versions 0 1 2 3
Occurrence Location: REAR OF 3152 BRIGHTON 6 STREET Name Of CONEY ISLAND BEACH & Premise: BOARDWALK Premises Type: PARK/PLAYGROUND Location Within Premise: OTHER BOARDWALK Visible By Patrol?: NO		NYC Parks Dept. Property Did this offense occur on NYC Parks YES Dept. Property? Command: 060 NYC Parks Dept. CONEY ISLAND Property Name: BEACH & BOARDWALK		Precinct: 060 Sector: A Beat: Post:	
Occurrence From: 2018-06-29 18:00 FRIDAY Occurrence thru: Reported: 2018-07-03 17:00 Complaint Received: WALK-IN					Aided # Accident # O.C.C.B. #
Classification: INTIMIDATE VIC/WITN Attempted/Completed: COMPLETED Most Serious Offense Is: FELONY PD Code: 197 COERCION 1 PL Section: 21515 Keycode: 126 MISCELLANEOUS PENAL LAW			Case Status: OPEN Unit Referred To: P.D.U. Clearance Code: Log/Case #: 0 Clearance Arrest Id: Clearance AO Cmd: File #: Prints Requested? NO		
Is This Related To Stop And Frisk Report NO	SQF Number: 0000-000-00000	Was The Victim's Personal Information Taken Or Possessed? NO	Was The Victim's Personal Information Used To Commit A Crime? NO		
Gang Related? NO	OCCB FOD Log #:	Name Of Gang:	Child Abuse Suspected? NO		
DIR Required? NO	Child in Common? NO	Intimate Relationship? NO	Officer Body Worn Camera: NO		
If Burglary: Forced Entry? Structure: Entry Method: Entry Location:	Alarm: Bypassed? Comp Responded?: Company Name/Phone: -- Crime Prevention Survey Requested?: Complaint/Reporter Present?:	If Arson: Structure: Occupied?: Damage by:	Taxi Robbery: Partition Present: Amber Stress Light Activated: Method of Conveyance: Location of Pickup:		
Supervisor On Scene - Rank / Name / Command :		Canvas Conducted: NO	Translator(if used):		
NARRATIVE: AT T/P/O C/V STATES HE WAS ON THE BOARDWALK ORDERING FOOD WHEN APPROACHED BY PERP WHO ASKED "YOU ARE STILL ALIVE" AND LATER THREATENED TO KILL THE C/V. C/VIS FEARFUL FOR HIS SAFETY AND LIFE.					

Version 1. COMPLAINT REPORT REVISED FOR OCCURRENCE LOCATION DETAILS DUE TO DETAILS OF NA RATIVE.... BBAZ
 Version 2. IN REGARDS TO COMPLAINT 2018-60-4015 THE C/V INCLUDED THAT WHEN THE PERP THRE THENED TO KILL HIM, IT WAS
 BECAUSE THE C/V IS EXPECTED TO GO TO COURT TO INCR MINATE THE PERP. C/V IS FEARFUL FOR HIS LIFE AND SAFETY. THE
 COURT DATE IN WH CH THE C/V AND PERP ARE BOTH TO ATTEND IS ON AUGUST 15TH, 2018,
 Version 3. THE 60 SQUAD DID RECEIVE A LETTER FROM THE SPODECK LAW GROUP P.C. INDICATING HAT WERE SEVERAL ERRORS
 TO THE COMPLAINT REPORT THAT WAS INITIALLY PREPARED. HIS REVISION GENERATED IS TO CORRECT THE ERRORS INDICATED
 ON THE LETTER. THE RRORS INCLUDED THE OCCURRENCE DATE, THE PERPETRATORS DATE OF BIRTH, THE RELAT ONSHIP TO
 THE VICTIM, AND THE PERPETRATORS STATEMENT MADE TO THE VICTIM. THE ICTIM AND PERPETRATOR ARE ACQUAINTANCES IN
 A PENDING COURT CASE.

No NYC TRANSIT Data for Complaint # 2018-060-004015

Total Victims: 1	Total Witnesses: 0	Total Reporters: 1	Total Wanted: 1
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VICTIM: # 1 of 1	Name: HITRINOV,MICHAEL	Complaint#: 2018-060-004015
Nick/AKA/Maiden: UMOS: NO Sex/Type: MALE Race: WHITE Age: 56 Date Of Birth: 07/02/1962 Disabled? NO Is this person not Proficient in English?: NO If Yes, Indicate Language: N.Y.C.H.A Resident? NO Is Victim fearful for their safety / life? NO Escalating violence / abuse by suspect? NO Were prior DIR's prepared for C/V? NO		Gang/Crew Affiliation: Name: Identifiers: Will View Photo: NO Will Prosecute: YES Notified Of Crime Victim Comp. Law: NO

LOCATION	ADDRESS	CITY	STATE/COUNTRY	ZIP	APT/ROOM
HOME-PERMANENT	7410 RIDGE BOULEVARD	BROOKLYN	NEW YORK	11207	

Phone #: HOME: Not Provided/Unavailable CELL: 718-344-5717 BUSINESS: Not Provided/Unavailable BEEPER: Not Provided/Unavailable
 E-MAIL: Not Provided/Unavailable

Victim was:	Shot NO	Stabbed NO	Slashed NO
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Actions Of Victim Prior To Incident:

Victim Of Similar Incident:	If Yes, When And Where
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REPORTER: # 1 of 1	Name: HITRINOV,MICHAEL	Complaint #: 2018-060-004015
Nick/AKA/Maiden: Sex/Type: MALE Race: WHITE Age: 056 Date Of Birth: 07/02/1962 Is this person not Proficient in English?: NO If Yes, Indicate Language:		Gang/Crew Affiliation: NO Name: Identifiers: Relationship To Victim:

Location	Address	City	State/Country	Zip	Apt/Room
HOME-PERMANENT	7410 RIDGE BOULEVARD	BROOKLYN	NEW YORK	11207	

Phone #: HOME: - - CELL: 718-344-5717 BUSINESS: - - BEEPER: - - E-MAIL:

WANTED: # 1 of 1	Name: KAPUSTIN, SERGEY	Complaint#: 2018-060-004015	Arrested: NO
Nick/AKA/Maiden:		Height: 6FT0IN	Order Of Protection: NO

Sex: MALE Weight: 270 Race: WHITE Eye Color: GREEN Age: 48 Hair Color: Date Of Birth: 07/30/1969 Hair Length: U.S. Citizen: Hair Style: UNKNOWN Place Of Birth: Skin Tone: UNKN Is this person not Proficient in English?: Complexion: UNKNOWN If Yes, Indicate Language: Accent: NO S.S. #: 0	Issuing Court: Docket #: Expiration Date: Order of Protection Violated? Does Suspect abuse Drugs / Alcohol? NO Suspect threatened /attempted suicide? NO Is the suspect Parole / Probation? NO Relation to Victim: FRIEND/ACQUAINTANCE Living together: NO Can be Identified: YES																						
Gang/Crew Affiliation: Name: Identifiers:																							
<u>LOCATION ADDRESS CITY STATE/COUNTRY ZIP APT/ROOM HOW LONG? RES. PCT</u>																							
Phone #: HOME: -- CELL: -- BUSINESS: -- BEEPER: -- E-MAIL:																							
N.Y.C.H.A. Resident: N.Y.C. Housing Employee: On Duty: Development: N.Y.C. Transit Employee:																							
Physical Force: THREATENED																							
Used Transit System: Station Entered: Time Entered: Metro Card Type: Metro Card Used/Poses: Card #:																							
<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="text-align: left;">CRIME DATA</th> <th style="text-align: left;">DETAILS</th> </tr> </thead> <tbody> <tr> <td>STATEMENTS MADE</td> <td>"I WILL KILL YOU BEFORE YOU COME AND TESTIFY"</td> </tr> <tr> <td>MODUS OPERANDI</td> <td>UNKNOWN</td> </tr> <tr> <td>ACTIONS TOWARD VICTIM</td> <td>UNK</td> </tr> <tr> <td>CLOTHING</td> <td>HEADGEAR -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CLOTHING</td> <td>FOOTWEAR -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CLOTHING</td> <td>OUTERWEAR -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CLOTHING</td> <td>ACCESSORIES -UNK -UNKNOWN COLOR</td> </tr> <tr> <td>CHARACTERISTICS</td> <td>UNKNOWN</td> </tr> <tr> <td>BODY MARKS</td> <td>-UNKNOWN</td> </tr> <tr> <td>IMPERSONATION</td> <td>UNKNOWN</td> </tr> </tbody> </table>		CRIME DATA	DETAILS	STATEMENTS MADE	"I WILL KILL YOU BEFORE YOU COME AND TESTIFY"	MODUS OPERANDI	UNKNOWN	ACTIONS TOWARD VICTIM	UNK	CLOTHING	HEADGEAR -UNK -UNKNOWN COLOR	CLOTHING	FOOTWEAR -UNK -UNKNOWN COLOR	CLOTHING	OUTERWEAR -UNK -UNKNOWN COLOR	CLOTHING	ACCESSORIES -UNK -UNKNOWN COLOR	CHARACTERISTICS	UNKNOWN	BODY MARKS	-UNKNOWN	IMPERSONATION	UNKNOWN
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IMPERSONATION	UNKNOWN																						
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Reporting/Investigating M.O.S. Name: POM DEFRANCESCO DANIEL	Tax #: 964479	Command: 060 PCT	Rep.Agency: NYPD																				
Supervisor Approving Name: SGT VINCENTI CHRIST	Tax #: 944299	Command: 060 PCT	Rep.Agency: NYPD																				
Complaint Report Entered By: PAA LIMONIK	Tax #: 352191	Command: 060 PCT	Rep.Agency: NYPD																				
Signoff Supervisor Name: SGT THOMAS	Tax #: 921810	Command: 060 PCT	Rep.Agency: NYPD																				
END OF COMPLAINT REPORT # 2018-060-004015																							

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